

Section 10.

SCHEDULE.**ENACTMENTS REPEALED.**

Session and Chapter.	Short Title.	Extent of Repeal.
11 & 12 Vict. c. 43.	The Summary Jurisdiction Act, 1848.	In section twenty-seven the words from "and if upon any such appeal" to the end of the section.
12 & 13 Vict. c. 45.	The Quarter Sessions Act, 1849.	Section one, so far as it relates to appeals from courts of summary jurisdiction.
42 & 43 Vict. c. 49.	The Summary Jurisdiction Act, 1879.	Section thirty-two.
15 & 16 Geo. 5. c. 86.	The Criminal Justice Act, 1925.	In subsection (1) of section seven the words from "in the same manner" to the end of the subsection, and section twenty-one.
22 & 23 Geo. 5. c. 48.	The Town and Country Planning Act, 1932.	Subsection (2) of section thirty-nine.

CHAPTER 39.

An Act to provide for the humane and scientific slaughter of animals; and for purposes connected therewith. [28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Provisions
as to
slaughter of
certain
animals in

1.—(1) No animal to which this section applies shall be slaughtered in a slaughter-house or knacker's yard except in accordance with the following provisions, that is to say, every such animal shall be instantaneously

slaughtered, or shall by stunning be instantaneously rendered insensible to pain until death supervenes, and such slaughtering or stunning shall be effected by means of a mechanically-operated instrument in proper repair: slaughter-houses and knackers' yards.

Provided that no person shall be liable for any contravention of the provisions of this subsection in respect of—

(a) the slaughter of any pig, boar, hog, or sow in a slaughter-house or knacker's yard in which there is not available a supply of electrical energy unless it is proved that such a supply could reasonably have been made available; or

(b) the slaughter of any animal slaughtered without the infliction of unnecessary suffering—

(i) by the Jewish method for the food of Jews and, by a Jew duly licensed for the purpose by the Rabbinical Commission constituted in accordance with the provisions of the First Schedule to this Act; or

(ii) by the Mohammedan method for the food of Mohammedans and by a Mohammedan.

(2) This section shall not apply within the area of any local authority to any animal which in that area is exempt from the application thereof under the section of this Act next following, but save as aforesaid this section applies to all animals.

2.—(1) Every local authority shall within twelve months after the passing of this Act consider the question whether they will pass a resolution applying the last foregoing section to all or any of the following animals, that is to say, sheep, ewes, wethers, rams and lambs; and if such a resolution is at any time (whether within the said twelve months or thereafter) passed by a local authority relating to any such animals, the last foregoing section shall in their area apply to those animals accordingly, but in any area in which no such resolution is in force the said animals shall be exempt from the application of the last foregoing section. Application of last foregoing section.

(2) If at any time a resolution is passed by a local authority exempting either goats or kids or both such animals from the application of the last foregoing

section in their area, the animals to which the resolution relates shall while the resolution is in force accordingly be exempt in that area from the application of the last foregoing section.

(3) The following provisions shall have effect with respect to any such resolution as is mentioned in the foregoing provisions of this section—

(a) not less than twenty-eight days before the meeting of the local authority at which the resolution is to be proposed special notice of the meeting and of the intention to propose the resolution shall be given to every member of the local authority, and the like notice shall also be inserted at least once in one or more of the newspapers circulated within the area of the authority;

(b) a resolution, after being passed, shall be published by advertisement in one or more of the newspapers circulated within the area of the local authority by whom it was passed, and may also be published otherwise in such manner as the local authority think sufficient for giving notice thereof to all persons interested;

(c) a copy of every such resolution passed by a local authority shall be sent to the Minister of Health;

(d) any such resolution passed by a local authority may be rescinded or varied by a subsequent resolution, but the foregoing provisions of this subsection shall apply with respect to any such subsequent resolution.

(4) The following provisions shall have effect with respect to any alteration of the areas of local authorities, that is to say:

(a) any resolution in force under this section in the altered areas shall—

(i) as respects any areas reduced, continue in force until rescinded or varied by the local authority;

(ii) as respects any areas extended, apply for a period of three months after the extension (unless rescinded within that

period) to the whole of the area extended and shall then be deemed to be rescinded as respects the whole area unless in the meanwhile a new resolution has been passed by the local authority;

- (b) if at any time a local authority is newly constituted or the area of any local authority is extended, the local authority shall consider the question specified in subsection (1) of this section within three months after the constitution of the authority or after the extension, as the case may be.

3.—(1) No animal shall be slaughtered or stunned in a slaughter-house or knacker's yard by any person who is not the holder of a licence granted by a local authority and in force under this section:

Prohibition
of slaughter
and
stunning
except by
licensed
slaughter-
men.

Provided that this subsection shall not apply with respect to the slaughter of any animal under the Diseases of Animals Acts, 1894 to 1927, by an officer of or person employed by the Minister of Agriculture and Fisheries.

(2) No licence shall be granted under this section except to a person of the age of eighteen years or upwards who is, in the opinion of the local authority, a fit and proper person to hold such a licence.

(3) A licence under this section shall be in force for such period not exceeding three years as may be specified therein and may be renewed from time to time at the discretion of the local authority.

(4) A licence shall be in force in the district of the local authority granting the licence and also in the district of any other local authority, and the licence shall be produced on demand for inspection by such other local authority.

(5) The local authority may suspend the operation of a licence within their area at any time for such period as they may determine and, where they are satisfied that the person is no longer a fit and proper person to hold a licence, the local authority by whom the licence was granted may revoke the licence.

(6) Any person aggrieved by the refusal of the local authority to grant or renew a licence or by the suspension or revocation by the local authority of a licence may appeal to a court of summary jurisdiction

against such refusal, suspension, or revocation, within one month of the intimation thereof, and the decision of the court of summary jurisdiction shall be final.

(7) A fee, not exceeding two shillings, may be charged by the local authority for each such licence, and a fee, not exceeding one shilling, for every renewal thereof.

(8) The provisions of this section shall apply to any licence granted by the local authority for the purpose of the provisions of this Act with regard to the Jewish and Mohammedan methods of slaughter.

(9) Any person applying for a licence shall in such application state—

- (a) whether he holds a licence granted under this Act in any area or areas other than that to which his application relates and the names of any such areas;
- (b) whether he has been refused a licence or has had a licence suspended or revoked in any other area and, if so, the name of that area; and
- (c) whether he has any similar application pending in any other area and, if so, the name of that area.

Provisions as
to slaughter-
houses and
knackers'
yards.

Penalties.

4. The provisions set out in the Second Schedule to this Act shall apply to all slaughter-houses and knackers' yards.

5. If any person slaughters or stuns, or attempts to slaughter or stun, an animal in a slaughter-house or knacker's yard in contravention of the provisions of section one or of subsection (1) of section three of this Act, or knowingly makes any false statement for the purpose of obtaining a licence under this Act, or contravenes or causes or permits any contravention of the provisions set out in the Second Schedule to this Act, he shall be liable on summary conviction to a fine not exceeding ten pounds, or on a second conviction to a fine not exceeding twenty pounds, or on a conviction subsequent to a second conviction to imprisonment for a period not exceeding three months or to a fine not exceeding twenty pounds, or to both such imprisonment and fine:

Provided that a person shall not be liable for any such contravention as aforesaid if he proves that by

reason of an accident or other emergency the contravention was necessary for preventing physical injury or suffering to any person or animal.

6. Any local authority who have provided or established a slaughter-house may, if they think fit, employ persons to slaughter or stun animals, in accordance with the provisions of this Act, and may make such charges as they consider reasonable for the services of the persons so employed.

Employment of slaughter-men by local authority.

7.—(1) Any medical officer of health or any sanitary inspector duly appointed by a local authority in whose area the slaughter-house or knacker's yard is situated may enter any slaughter-house or knacker's yard in the district of the local authority at any time when business is, or appears to be in progress, or is usually carried on therein for the purpose of ascertaining whether there is or has been any contravention of the provisions of this Act, and if any person shall refuse to permit any medical officer of health or sanitary inspector to enter any premises which he is entitled to enter under this Act, or shall obstruct or impede him in the exercise of his duties under this Act, he shall be liable on summary conviction to a fine not exceeding five pounds.

Inspection of slaughter-houses and knackers' yards.

(2) This section shall not apply with respect to any slaughter-house or knacker's yard which for the time being is or is comprised in an infected place within the meaning of the Diseases of Animals Acts, 1894 to 1927.

8.—(1) The local authority for the purpose of enforcing the provisions of this Act shall, as regards the Metropolitan Cattle Market in the metropolitan borough of Islington and as regards the city of London, be the common council of the city of London, and as regards their respective areas, the councils of the metropolitan boroughs and county boroughs, and boroughs and urban and rural district councils, and it shall be the duty of every such local authority to enforce the provisions of this Act within their area.

Enforcement.

(2) The expenses of enforcing this Act shall be defrayed in the case of the common council of the city of London and metropolitan borough councils, out of the general rate, and in the case of other councils; as expenses incurred in the administration of the Public Health Acts, 1875 to 1926.

Interpreta-
tion.

9. In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“Animal” means any horse, mare, gelding, pony, foal, colt, filly, stallion, ass, donkey, mule, bull, cow, bullock, heifer, calf, steer, ox, sheep, ewe, wether, ram, lamb, pig, boar, hog, sow, goat or kid.

“Contravention,” in relation to any provision of this Act, includes a failure to comply with that provision.

“Knacker’s yard” means any building, premises or place used in connection with the business of killing animals not killed for butcher’s meat.

“Local authority” means a council having under this Act the duty of enforcing the provisions thereof.

“Mechanically-operated instrument” includes an instrument for stunning by means of electricity.

“Slaughter-house” means any building, premises or place used in connection with the business of killing animals for butcher’s meat.

Short title,
extent and
commence-
ment.

10.—(1) This Act may be cited as the Slaughter of Animals Act, 1933.

(2) This Act shall not apply to Scotland or Northern Ireland.

(3) This Act shall come into operation on the first day of January, nineteen hundred and thirty-four.

Section 1.

SCHEDULES.

FIRST SCHEDULE.

RABBINICAL COMMISSION.

The Rabbinical Commission for the licensing of Shochetim (Jewish ritual slaughterers) shall be forthwith set up constituted as follows :—

The Chief Rabbi of the United Hebrew Congregations of the British Empire for the time being who shall be the permanent chairman ;

One member to be appointed by the Spanish and Portuguese Synagogue (London) who shall be a vice-chairman;

1ST SCH.
—cont.

Three members to be appointed by the Beth Din appointed by the United Synagogue (London);

Two members to be appointed by the Federation of Synagogues (London);

One member to be appointed by the Union of Orthodox Hebrew Congregations (London);

Two members to be appointed by the president for the time being of the London committee of deputies of British Jews to represent provincial congregations.

The commission shall be entitled to exercise its functions notwithstanding any vacancy in its constitution, and four members shall form a quorum.

SECOND SCHEDULE.

Sections 4
and 5.

PROVISIONS AS TO SLAUGHTER-HOUSES AND KNACKERS' YARDS.

1. Every person engaged in driving or bringing any animal to the place of slaughter shall—

- (a) avoid, so far as practicable, driving or bringing the animal over any ground which is likely to cause the animal to slip or fall; and
- (b) otherwise adopt such methods and precautions as will prevent the infliction upon the animal of unnecessary suffering and pain.

2. Every occupier of a slaughter-house or knacker's yard shall cause every animal brought to such slaughter-house or knacker's yard for the purpose of being slaughtered to be provided with a sufficient quantity of wholesome water, and when it is necessary to confine any such animal for a period exceeding twenty-four hours with a sufficient quantity of wholesome food.

3. Every occupier of a slaughter-house or knacker's yard and every servant of such occupier and every other person employed upon the premises in the slaughtering of cattle, shall, before proceeding to stun any horse, mare, gelding, pony, foal, colt, filly, stallion, ass, donkey, mule, bull, ox, bullock, cow, heifer, or steer, cause the head of such animal to be securely fastened in such a position as to enable such animal to be felled with as little pain or suffering as practicable, and shall in the process of slaughtering any animal use such instruments and appliances

2ND SCH.
—cont.

and adopt such method of slaughter, and otherwise take such precautions as may be requisite to secure the infliction of as little pain and suffering as possible.

4. A person shall not so far as is practicable without structural alteration to premises existing at the passing of this Act, slaughter, or cause or suffer to be slaughtered, any animal in the view of another animal.

5. A person shall not use any instrument for slaughtering or stunning any animal unless his ability and physical condition qualify him to use it without inflicting unnecessary pain on the animal, nor shall he use a mechanically-operated instrument in such manner or in such circumstances or in such a state of want of repair as to incur the risk of causing unnecessary suffering to an animal.

6. An occupier of a slaughter-house or knacker's yard shall not (so far as it is reasonably practicable to avoid it) cause or allow any blood or other refuse to flow from such slaughter-house or knacker's yard so as to be within the sight or within the smell of any animal in the slaughter-house or knacker's yard, and he shall not cause or allow any such blood or other refuse to be deposited in the waiting pens or lairs so far as it is reasonably practicable to avoid it.

CHAPTER 40.

An Act to amend the law with respect to Customs
in the Isle of Man. [28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Increased
duty on
matches.

1.—(1) As from the ninth day of June, nineteen hundred and thirty-three, in lieu of the customs duties theretofore payable on matches, there shall, until the first day of August, nineteen hundred and thirty-four, be payable on matches removed or imported into the Isle of Man the duties specified in the First Schedule to this Act.

(2) For the purpose of the duties under this section, a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.